

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 699

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO ATTORNEY'S FEES; AMENDING SECTION 32-704, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING ATTORNEY'S FEES FOR CONTESTED DIVORCE AND CHILD CUSTODY MATTERS AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 32-704, Idaho Code, be, and the same is hereby amended to read as follows:

32-704. ALLOWANCE OF SUPPORT MONEY, COURT COSTS AND ATTORNEY'S FEES -- REPRESENTATION OF CHILD. ~~1-~~ (1) While an action for divorce is pending, the court may, in its discretion, on the motion of either party and upon showing made in conformity with section 32-705 or section 32-706, Idaho Code, whichever be appropriate, order the payment of temporary maintenance of either spouse by the other or temporary support of a child of the marriage, in amounts and on terms just and proper under the circumstances.

2- (2) The court may, in its discretion, on the motion of either party enter a decree of legal separation, providing for custody of children, division of property, payment of debts, payment of child support, and payment of spousal support as set forth in the statutes governing domestic relations.

~~3- The court may from time to time after considering the financial resources of both parties and the factors set forth in section 32-705, Idaho Code, order a party to pay a reasonable amount for the cost to the other party of maintaining or defending any proceeding under this act and for attorney's fees, including sums for legal services rendered and costs incurred prior to the commencement of the proceeding or after entry of judgment. The court may order that the amount be paid directly to the attorney, who may enforce the order in his name.~~

(3) In a contested divorce or child custody matter, a party at any time after the initiation of the proceeding may make a motion for attorney's fees and other cost assistance in accordance with this subsection if the party contends legal representation cannot be obtained because of a lack of financial resources.

(a) The court shall advise both parties at the initial hearing in a contested divorce or child custody matter that each party:

(i) Would be best served by consulting with an attorney and having legal representation in the proceedings; and

(ii) At the time of the initial hearing or at some other time may request the court to order the other party to assist in the payment of a party's attorney's fees and other costs of the proceeding if the party contends legal representation cannot be obtained because of a lack of financial resources.

1 (b) If a party makes a request by motion for attorney's fees and other
2 cost assistance, the court shall consider the sworn financial resources
3 of both parties, including any amounts a party expects to receive from a
4 third person, and the factors set forth in section 32-705, Idaho Code.
5 The court shall enter a written decision regarding the motion. In such
6 decision, the court may order a party to pay a reasonable amount for the
7 attorney's fees and costs to the other party for maintaining or defend-
8 ing a proceeding for a contested divorce or child custody matter. The
9 court may order that the amount be paid directly to the attorney, who may
10 enforce the order in the attorney's name.

11 (c) The party paying the fees and costs shall not be ordered to pay more
12 than such party's own attorney's fees.

13 (d) The court may order attorney's fees be paid to the nonmoving party
14 by the moving party if the court finds the motion for attorney's fees and
15 costs of the proceeding was made frivolously or to harass the nonmoving
16 party or to delay the proceeding.

17 4. (4) The court may appoint an attorney or guardian ad litem to rep-
18 resent the interests of a minor or dependent child with respect to his or
19 her support, custody, and visitation, but only in those instances where the
20 court deems legal representation or other assistance is necessary beyond any
21 court ordered and court related services previously authorized for the par-
22 ticular case. The court shall enter an order for costs, fees, and disburse-
23 ments in favor of the child's attorney or guardian ad litem. The order shall
24 be made against either or both parents, except, if both parties are indigent,
25 the costs, fees, and disbursements shall be borne by the county in which the
26 action is pending.

27 SECTION 2. An emergency existing therefor, which emergency is hereby
28 declared to exist, this act shall be in full force and effect on and after
29 July 1, 2026.